

De-notified and Nomadic Tribes

A Perspective

Burdened still by labels and notions that have been the DNTs lot since the colonial period, there needs to be concerted efforts aimed towards their rehabilitation. While such efforts have to be many-pronged to tackle issues of gender bias, chronic underdevelopment and illiteracy, the onus lies on governments at the centre and state to take the initiative for lasting and truly effective change.

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The de-notified and nomadic tribes (DNTs) are an integral part of the Indian society.¹ Though ethnographic studies have been conducted on some of them, it is only recently that they are finding some mention in academic and popular discourses. However, attention is focused mostly on the issue of violation of human rights. This is justifiable considering the frequent infringement of their rights but other vital concerns also need to be attended to. The DNTs are not just a neglected section but a complex one as well. Their problems are not only grounded in contemporary reality, but also deeply rooted in history. They have suffered injustices at the hands of both polity and society but the same are not sufficiently redressed. What is lacking is a comprehensive perspective, which will enable activists, researchers, policy-makers and community leaders to take appropriate action. The present paper makes an attempt in this direction. Though the analysis is applicable to the whole Indian situation, references are drawn mainly from Maharashtra. This is because the state of Maharashtra, being at the confluence of the north and the south, houses a large number of nomadic and de-notified communities who have originated from both the directions. The state has also nurtured a dynamic social movement of the DNTs. It therefore provides an ideal backdrop against which a perspective could be developed.

Before setting out to develop a perspective, it would be useful to note some of the broad characteristics of these communities. This is based after Bokil (1999). – Each DNT community is an endogamous group. Though they are termed as tribes, for all practical purposes they were treated as castes in the traditional rural society. Restrictions on inter-dining and inter-marriages prevailed. They were not considered untouchables but occupied lower-most positions in social hierarchy.

– The DNTs are mainly patriarchal communities. The authority of the elderly males is considered supreme. The status of women is extremely low and very often, brutal sanctions are imposed on them.

– They have a very strong caste or tribal council. Almost all the decisions pertaining to their domestic and social life are negotiated in the caste council. It is only recently that secular agencies like the police or judiciary are referred to.

– The nomadic groups have strong ecological connections. Many of them are dependent upon various types of natural resources and carve out intricate ecological niches for their survival. The changes in ecology and environment seriously affect their livelihood options.

– Domesticated animals form an integral part of their economy. Various types of animals – horses, donkeys, camels, bullocks, cows, sheep, dogs, monkeys and bears – are reared, trained and used by the nomads. A variety of wild game like foxes, boars, deer, lizards, mongooses, snakes and hares are also trapped, hunted, sold and made use of by them.

– They also have a close relationship with flora. A number of vegetative products are obtained, processed and sold by them.

– As they are constantly on the move, they do not have a any domicile. Though many of them have now begun to settle down, traditionally they did not possess land rights or house titles. As a result, they are deprived not only of welfare programmes, but also of citizenry rights.

Problems of Classification and Enumeration

The first and foremost problem of the DNTs is that of classification and enumeration. The DNTs are not categorised as a class under the constitutional schedules like the scheduled castes (SCs) and scheduled tribes (STs). Some of them have been included in the respective state lists

of SCs and STs but there is no uniformity across the country. For example, in Maharashtra, the 'Phanse Pardhis' are included in the STs but their counterparts, the Haran Shikaris or Gaon Pardhis are categorised under the VJNTs (Vimukta Jatis and Nomadic Tribes, as they are called in Maharashtra). Similarly, the Kaikadis in the Vidarbha region are grouped under the SCs but those from the rest of the state are under the VJNTs. The same Kaikadis are categorised as STs in Andhra Pradesh. One of the most populous tribes, the Banjaras or Lambadas (and their sub-sections) are included in the VJNTs in Maharashtra but categorised as SCs in Karnataka. Such anomalies are plenty.

This problem has arisen due to a number of reasons. In the first place the DNTs are not a homogeneous group. De-notified tribes were previously identified as criminal tribes. It was only in 1952 when the de-notification order was passed that they were termed as de-notified. Therefore, the issue of including them as a group did not arise when the schedules were prepared in 1950. Some of the individual tribes, on their respective merits, were included in the schedules (as mentioned above). The major shortcoming of the schedules was that a set of norms was prescribed for eligibility and only those communities, which supposedly fulfilled those norms, were included. Though the lists were modified a couple of times later, a great deal of anomalies and discrepancies have persisted. For example, the list of VJNTs in Maharashtra includes some sedentary communities whereas some genuine nomads have been excluded. The 'not nomadic' communities are comparatively well developed and usurp most of the benefits meant for true nomads.

The DNTs suffer a variety of handicaps because of their exclusion from the constitutional schedules; the first and foremost being the lack of protective

safeguards. The DNTs are not covered under the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act (1989), under which the SCs and STs are protected. As a result, the violation of human rights cannot be addressed effectively. The second handicap is that the DNTs are deprived of central reservations and concessions although in some states they get the state facilities. In Maharashtra, 4 per cent seats are reserved for the VJNTs in the state sector. A separate category called special backward classes, including Dhanagars and Vanjaris (mind Vanjaris and not Banjaras), has been created and 2 per cent seats are reserved for them. As in the case of the STs, the problem of pseudo-identities also affects the DNTs. The concessions of the DNTs are usurped by other communities having a similar nomenclature.

The third handicap is that DNTs are not enumerated separately in the decennial census as it is done for the SCs and STs. The correct estimation of DNT population, therefore, not available. In order to overcome this impasse, the author conducted a statistical exercise a few years ago for the state of Maharashtra [Bokil 1995]. The 1931 Census is the last census wherein communitywise figures are provided. We made statistical projections from the census and also combined estimates of a committee appointed earlier by the government of Maharashtra. Following this method, the population of the VJNTs in Maharashtra in 1991 was estimated around 6.5 million persons. This estimate has been on a liberal side. It came to about 7 per cent of the state population in 1991 and compared well with 11 per cent SCs and 9 per cent STs.

It is necessary to have a clear idea of the population of the DNTs to make plans for their development. But this seems difficult in the near future. The idea of a special census is mooted by their organisations but the obvious problem that would arise is that many bogus persons would enumerate themselves as DNTs as is happening in the case of the STs. That would be counter-productive. And if caste associations are allowed to enumerate their numbers, there is a danger of exaggeration. Hence, for the time being, the planning process will have to do without exact numbers of DNTs.

Nomad Anthropology and Archaeology

Though nomadic tribes present quite an interesting cultural and social mosaic, they have not been studied in great detail as

much as the scheduled tribes. This is not to say that no studies have been made (for a useful compendium of studies, see Misra and Malhotra 1982). Certain communities like the Dhanagars or Banjaras have received better anthropological attention but on the whole they have been neglected by mainstream anthropology. Even where research has been undertaken it is mainly from social and cultural anthropological angles. The British officers compiling the gazetteers have made a remarkable documentation on indigenous communities but it needs to be corrected and updated. In fact, there is a need to redress damages done by colonial anthropology. In the case of DNTs, colonial officers made the usual confusion between castes and occupations, which laid the foundation for a repressive legislation.

The anthropological sub-discipline that is pertinent in this case is economic anthropology. This is so because these communities, although nomadic, had productive linkages with the village society. They were not part of the 'jajmani' or 'balutedari' systems but provided those goods and services, which the artisans did not supply. Some of the products like beads, trinkets, scents, perfumes, swords and medicines were quite exotic. These exchange relationships which continued for generations are worthy of serious studies. Another area warranting scholarly attention is the decline of these occupations and the shift to alternate ones. The nomads have been adopting occupations that are close to or similar to traditional ones but they have also ventured into fresh areas. Conceptually and methodologically, this is a fertile field for students of economic anthropology.

The necessity of anthropology is self-evident but that of archaeology needs to be reiterated. The branch of ethno-archaeology has been developing steadily. Its findings, as they are shrouded in technicalities, may not be directly useful to planners, practitioners and activists but some insights could be very illuminating. For example, it has been noticed that beads, stones and trinkets found at some of the neolithic sites in the Deccan might have been transported there from northern India [Dhavalikar 1985]. Even today, nomadic communities like the Vaidus are found to be trading similar kinds of beads across the Deccan. Detailed investigations into such types of linkages would prove rewarding from both academic and practical points of view.

Another important area of research is the genetic mapping of nomadic communi-

ties. Previously, physical anthropologists used to take elaborate physical measurements as well as analyse blood samples to ascertain physical affinities between different communities. However, except some major groups like the Dhanagars, the nomadic communities have not been included in these endeavours. The previous techniques of physical anthropology might be out of place today but these communities need to be included in the Human Genome Project or similar other enterprises. Needless to emphasise, they would provide some of the missing links in the ethnography of India.

History

The DNTs present a real challenge when it comes to documenting their history or historical dislocation, to be precise. Though the nomadic people give an impression that they were nomadic from time immemorial, many of them have become nomadic due to specific historical events or processes. For example, the 'Gadi Lohars' in Maharashtra claim that they were the royal blacksmiths of Rana Pratap and were led to wilderness after his defeat by the Mughals. The Banjaras were packers and transporters of the Mughal armies but were sent packing when the empire collapsed. The same fate met the 'Shikalgars' who were involved in preparing and grinding metal weapons. The fall of one kingdom or loss of patronage would spark off a process of dislocation for these communities. On the other hand, certain communities like the 'Berads' or 'Ramoshis' were very powerful in south Maharashtra and north Karnataka. In some areas they were the local chieftains. They lost their pre-eminence during the British rule. A process of dislocation was also accelerated by the British land settlement operations and administrative restructuring. This was also the reason why some of these communities took to crime.

The role of history could be analysed in the following ways:

- Understanding the history of specific communities and understanding how and why they were drawn to a nomadic life, i.e., analysing the historical forces that led to nomadism.
- Analysing how history has shaped their economic, social and cultural life and how it has given rise to a particular economy, culture and mindset.
- Understanding the historical factors leading to criminal behaviour.

The study of history is important not only from the knowledge point of view,

but also for searching identities and inculcating self-respect. Moreover, it would shed important light on the processes of dislocation of disadvantaged communities. This is one area, which is extremely neglected, even in subaltern studies. This type of research cannot be confined to history alone but would necessarily be a multi-disciplinary activity, involving economic history, geography, and anthropology.

Colonial Legacy and Implications of Criminal Tribes Act

The role of history is perhaps most significant in the case of the so-called 'criminal tribes'. Crime was never absent in India and old Sanskrit dramas, like 'Mruchhakat' (by Shudrak), 'Charudatta' (by Bhas) and 'Dahskumarcharit' (by Dandi) describe professional thieves called 'Sharvilaks'. A science of theft called 'Chouryashastra' was part of the 18 Vidyas and 64 Kalas [Deshpande 2000:108-10]. There have been groups of people, who practised and excelled in this profession. The Indian society, in general, tolerated the menace of petty thieves. However, it is hard to say whether certain communities were habitually and permanently engaged in serious crime. Robbers and dacoits existed but they were multi-ethnic bands of disgruntled persons. The bands were short-lived too. The incidence of 'Thugs' and 'Pendharis' has been historically and geographically specific. The professional skills of pick-pockets and thieves like the Uchale, Ghantichor and alike were restricted to petty thefts and small crimes.

What happened during British rule is perhaps one of the darkest chapters in the colonial history of the subcontinent. After the mutiny of 1857, the British administration took a number of preventive steps to retain law and order. The enactment of the Criminal Tribes Act (CTA) of 1871 was one of them. However, the act was based on a fallacious understanding of Indian society, particularly the caste system. One of the influential members of the Law and Order Commission, T V Stephens equated caste with profession and believed that certain communities were professionally criminal and crime was their caste, occupation as well as religion [Mane 1997:120]. These ideas were conveniently used to formulate the act, which notified certain communities as criminal tribes. The provisions of the act were extremely oppressive. Every member of the notified community was compelled to register

himself/herself at the local police station and had to give 'Hajeri' (attendance) at a specified time of the day. Their movements were curtailed. They could not shift their residence at will and had to take proper permission before any travel or movement. The penalties for breaking these rules were quite severe. The local police could easily round up any member of the community upon mere suspicion. Initially the Hur tribe from Sindh was notified under the act. Subsequently other communities were included. The act was first modified in 1897 and the penalties were made more stringent. A compendium on criminal tribes was also subsequently prepared by the then inspector general of police of Bombay Presidency, M Kennedy [Kennedy 1908].

This harsh act, however, came under severe criticism. The attitudes of the British, domestically as well as overseas, also changed. The idea of rehabilitation of criminals gained ground, and, hence the Criminal Tribes Settlement Act was enacted in 1908 to form settlements of these communities so that they could be reformed. Following this act, a number of industrial and farming settlements were formed all over the Bombay Province. Though the settlements were meant for reformation, for all practical purposes, they were jails. They were surrounded by barbed wire compounds and the inmates did not even have the freedom to answer nature's call at night. The 1908 Act was modified in 1911. The act was divided in four sections, viz, notification, registration, restriction and settlement of criminal tribes. A major modification to the original CTA took place in 1923-24 and a pan-Indian Act was formulated. Though the broad goal of the modification was to integrate the criminal tribes with the mainstream society, the basic tenets were not altered. The provisions were grossly humiliating. As a result, the modified act became an instrument in the hands of the village level officials to harass the concerned communities [Mane 1997: 127]. The CTA was changed only after 1937 when the governor of Bombay appointed a committee under the chairmanship of K M Munshi to review the act. The Munshi Committee thoroughly and comprehensively reviewed the situation and made a number of suggestions. The most notable contribution was that the committee, for the first time, defined various terms like tribe, gang, class, habitual offender, criminal and so on. In 1938, the government of Bombay prepared a CTA manual to clarify the provisions, rules and procedures under the CTA.

Due to its harsh nature, the CTA was severely criticised and people began protesting in every province of the country. As a result, when provincial governments were formed, many of the provisions were stayed. The government of Bombay repealed the act in 1949. The Madras government had already done it in 1948. In fact, the CTA had become irrelevant against the principles of the Constitution of India (No 13, 14, 19D and E) which guaranteed fundamental rights of every citizen. The CTA was revoked in the country in 1952 and the notified communities were 'de-notified'. The CTA was replaced by the Habitual Offenders Act.

The Habitual Offenders Act targets individuals and not communities. However, in actual practice, the police department, still moulded in the colonial mindset, follows the same old practices. This is the major and practical implication of the CTA. The police department still does not accept the fact that a whole community cannot be branded or stigmatised. Whenever a crime takes place, they round up all the male members of the community in the vicinity and apply brutal methods to extract information. At times women and children are not spared. The communities of 'Pardhis' and 'Kanjarbhats' are particularly vulnerable in this regard. The regional as well as national press is routinely filled with stories of atrocities against the Pardhis and Kanjarbhats. The problem is complicated because, unfortunately, some members of these communities are still involved in robbery and dacoity. Some of them are engaged in illicit brewing and selling of liquor.

This is basically a social work issue and throws challenges before professional social workers. Two approaches are needed. On the one hand, it is necessary to change the mindset of the people in general and police in particular. On the other hand, the members of the de-notified tribes need to be persuaded to shun these occupations. They need to be told firmly and sympathetically that these are not the best options for a disadvantaged community. Unfortunately, this challenge has not been sufficiently taken up by social work in India, despite the addition of thousands of social work graduates and postgraduates every year. The DNTs being a transient and mobile group have always remained at the periphery of rural and urban areas and, hence, have not received due attention. The departments of criminology in social work institutions need to pay attention to this issue. Some NGOs are involved in rehabilitating these

communities but the efforts need to be made on a wider scale.

Issues of Livelihoods and Development

As nomadic people carved their livelihoods through a variety of activities, they could be suitably classified in four categories: (a) pastorals and hunter-gatherers (b) goods and service nomads (c) entertainers and (d) religious performers.

In western India, pastoral nomads mainly include the shepherds (Dhanagars in Maharashtra, Kuruba in Karnataka) although there are cowherd communities like the 'Kathiawadis' and 'Maldharis' in Gujarat. The shepherds are prominent all over the semi-arid, deccan plateau of the country whereas cowherds are numerous in the north, and north-western desert and grasslands. The hunter-gatherer groups mainly include the Pardhis which is a pan-Indian community hunting small game all over the countryside.

The second type of communities provided a variety of goods and services. They included the wandering blacksmiths ('Ghisadi', 'Gadi Lohar'), stone workers ('Patharwat'), stone dressers ('Beldar'), earth and stone workers ('Vaddar'), metal casters ('Otari'), knife grinders and weapon makers ('Shikalgar'), transports and salt carriers ('Banjara' or 'Lambada'), wool weavers and blanket makers ('Sanagar'), basket and broom makers ('Kaikadi'), distillers ('Kanjarbhat'), roof-thatchers ('Chapparband'), wandering quacks ('Vaidus') and a variety of traders who sold beads, bangles, ornaments, perfumes and so on.

The entertainers consisted of the dances ('Kolhati'), acrobats and tumblers ('Dombari'), jugglers ('Karkmundi'), picture showmen ('Chitrakathi'), strolling actors ('Bahurupi'), wrestlers ('Dangat, Vir'), bull deckers ('Nandiwallas'), snake charmers ('Garudi'), bear exhibitors ('Darweshi'), monkey trainers ('Makadwale') and others. These groups satisfied the entertainment needs of rural society.

Similarly, various types of religious performers also frequented the villages. They included the balladeers ('Vasudev'), minstrels ('Gondhali'), bards ('Rawal'), ascetics ('Gosavi'), devotional singers ('Aaradhi'), harpers ('Bharadi'), astrologers ('Joshi'), and so on. Some of them also recorded and recited the genealogies. The Joshis have been a pan-Indian phenomenon. They provided useful forecast on natural events like rain, drought, cyclone, etc, and searched for auspicious timings

and occasions for marriages, betrothals, naming ceremonies and other rituals.

Though the variety of activities as livelihoods is astonishing, not all of them were satisfactory or remunerative. Most nomadic communities had also to, therefore, depend on begging as a supplementary activity. Their dietary practices had virtually no restrictions. They indulged in petty thefts and stealing for the same reason. However, much of the theft was restricted to a few ears of corn, fruit, harvested grain and similar products. The nomadic women were particularly expert and agile in lifting small articles and things from the houses (details can be found in Atre 1989 and Kennedy 1908). The communities like Uchale, Ghantichor and Makadwale trained their young ones in the art of stealing and pick-pocketing and also rigorously prepared them to withstand extreme physical hardships and police brutalities [Gaikwad 1987]. The nomads had to compete with sedentary communities for access to and supply of natural resources and in such cases they were in a perpetually disadvantaged situation. However, as pointed out by Gadgil and Guha (1996:105), they carved out elaborate ecological niches and a systematic economic and ecological organisation was followed.

Though nomadic communities carried out diversified economic activities, at present their livelihoods are seriously threatened by modern processes of development. Development has been characterised by mechanisation, urbanisation, commercialisation, large-scale infrastructural development, growth in communication and transportation, enhanced social and spatial mobility and a shift from an agrarian economy to an industrial one. As a result, a majority of the nomadic communities have begun to lose their livelihoods and had to shift towards alternate occupations. This has been described in detail in Bokil (1999) but a mention would be appropriate here.

Livelihoods of the pastorals and hunter-gatherers are primarily affected because grazing lands and forests are no longer the open access regimes. The specific reasons for the impact on their livelihoods are (a) overall degradation of natural resources in terms of both quality and quantity (b) emergence of competitive use patterns between various users and sectors (c) increasing privatisation and commercialisation of resources and (d) restrictions on access to and control over natural resources.

The goods and service nomads have been affected due to the processes of

mechanisation and industrialisation characterised by improved methods of production and introduction of newer materials. The mass production of industrial goods and their extensive distribution in rural markets has occurred on an unprecedented scale. Introduction of newer materials like cement, stainless steel, aluminium, plastic, synthetic fibres and various petro-chemical products have made redundant the traditional materials like stone, bamboo, copper, brass, lime, jute and wood. Infrastructural development, particularly the construction of roads, and subsequent growth of automobile traffic have affected the transportation and communication related occupations of many nomads. The influx of cheap, foreign goods would further aggravate the situation.

The entertainers have suffered mainly because of the spread of modern entertainment media, particularly television, which has spread to the remotest parts of the country in the past decade. Televised entertainment is not only varied and infinite, but also thrilling and hypnotising. The traditional songs, dances, dramas, acrobatics and magic are no match to the excitement offered by television. Secondly, the entertainers like the snake charmers and bear exhibitors are being forced out of business due to the ideas of wildlife conservation and subsequent restrictions caused by the legislation.

The religious performers are meeting the same fate, albeit due to different reasons. The religious attitudes, beliefs and practices most of contemporary society have been changed due to modernisation. Elements of rationality, secularism and modernity have been introduced into traditional society. This does not mean that people have become less religious. The importance of religion in day to day life has not eroded. Blind faith and superstitions are still widely prevalent but the overwhelming importance attached to rites, rituals and religious obligations has reduced. Grahan (eclipses) and Amavasyas are no longer the occasions for 'dan'. Computerised horoscopes have replaced fortune-telling parrots. Earlier, a section of nomads thrived on these activities but now they have lost the necessary patronage. Their vocations have been reduced almost to beggary.

The general response of these communities to the changing situation has been to move into some allied occupation or resort to wage labour. Numerically stronger and pastoral communities like the Dhanagars or Banjaras have settled down to farming. However, as pointed out by

Malhotra and Gadgil, traditionally nomadic pastorals had not established right over land and, hence, most of them are now being forced to cultivate small tracts of marginal lands which has resulted into substantial lowering in the quality of life [Malhotra and Gadgil 1981:59]. The same is happening with the Berads and Ramoshis who had an agricultural background. Only those with sizeable and better quality land holdings are able to earn a fair livelihood. The pastorals like Gopals, Dangats, Nandiwallas and Garudis have turned to dairy farming. The Kanjarbhats have preferred to continue distillation of liquor and have been acquiring licences for selling country liquor. Some of the enterprising ones from the Vaddar, Beldar and Patharwat communities have become petty civil contractors. The Vaidus in central Maharashtra have taken to preparing tin boxes and products.

In terms of spatial distribution, most of the DNTs have begun to congregate around district and taluka towns. They have been occupying common lands on the periphery of the towns and are trying to earn livelihoods in the urban and semi-urban economy. The new livelihoods activities are as varied as their traditional ones. The options, however, belong to the informal sector which is non-remunerative, insecure and prone to market fluctuations. In a survey carried out in western Maharashtra in 1990-92, it was found that 53.75 per cent DNT families were dependent on wage labour, 22.6 per cent on service (both public and private sector), 9.59 per cent on petty trade, 9.22 per cent on so called criminal activities like begging, pickpocketing and distilling alcohol and 4.81 per cent on agriculture [Mane 1997:190]. Agricultural wage labour is an easy entry occupation and like other landless communities the DNTs are also resorting to it. Options in agriculture are virtually non-existent. Land redistribution programmes are no more feasible due to scarcity of land. Small, dry land agriculture has also not remained an attractive proposition. As a result, wage-labour and petty-trade seem to be the only viable options.

Petty-trade requires subsidised credit but proving one's creditworthiness is a big challenge before the DNTs. Considering the failure of the Integrated Rural Development Project (IRDP) or its tribal counterpart, ITDP, it is not advisable to initiate a similar scheme for the DNTs. Such schemes routinely kill on individuals initiative. The VJNT development corporation set up by the government of Maharashtra has not yielded encouraging

results either. The ideal approach would be of the self-help group (SHG) which has also been used effectively in organising women. Saving and credit groups of both men and women need to be started among DNTs who could be then assisted with subsidised credit. The SHG approach would not only ensure prompt repayment of loans but also strengthen community bonds.

In terms of development, the most pertinent aspect is education. The enrolment of nomadic children is increasing in schools but retention rates are not satisfactory. Poverty, seasonal migration, parental apathy, domestic insecurity, unattractive format of education and societal ridicule are main hindrances in the spread of education. Some voluntary agencies have attempted non-formal education methods but their scope has been limited. The ideal solution for the nomadic children is ashram schools. In a state like Maharashtra, the state government is supporting a large number of ashram schools run by private institutions. But the quality of education is poor as most of the ashram schools are run with political and economic motives. A large number of pseudo-DNTs also take advantage of the ashram schools. Educational efforts, from within the DNT communities, need to be made on a massive scale so that at least the next generation is put on a sound developmental path.

This is also true of health. The nomadic people are known for their robust physique and hardy constitution but the change in lifestyle, especially the loss of traditional diets, has made them vulnerable to modern ailments and diseases. The survey of DNTs mentioned earlier noted that 90 per cent of DNT women and children were malnourished and lived in unhygienic conditions. The incidence of gastro-intestinal diseases caused due to eating unclean meat (especially pork) has been quite high [Mane 1997:262]. The unfortunate part is no reliable statistics is available on their health status and, hence, correct assessment cannot be made. This area needs to be covered by community health workers and professionals.

Gender Issues

One of the most curious as well as perplexing dimensions of issues affecting nomadic communities is that of gender discrimination. The nomadic communities are patriarchal in nature and enforce traditional patriarchal structures and institutions. Alike other poorer sections the nomadic women are also engaged in productive tasks. They are not confined to the

four walls of the house simply because the house does not exist. They are involved not only in processing and manufacturing activities, but also in selling and marketing ones. As they have to interact with the surrounding world on an everyday basis they are quite bold, fearless and articulate.

But the other side is that the nomadic women remain severely repressed by the patriarchal structures. As activists mention, nomadic women are Sabalas (strong) outside but Abalas (feeble) before their husbands. Patriarchy among nomads is more stringent than sedentary, agricultural communities. Though outward expressions differ in different communities, the underlying feature is that women are considered a piece of property. Child marriages are common. In some of the nomadic communities like the Pardhis or Vaidus, women are sold, exchanged, mortgaged and even leased out [Mane 2001:54]. In most of the communities Dej (dowry) is paid to the bride and, hence, parents frequently indulge in extracting as much price as possible. There are also stringent rules on conduct and behaviour of women. The most traumatic aspect is the penalty imposed on women when these rules are broken. Exogamous marriage, adultery and pre-marital pregnancy are considered serious crimes. The forms of penalties, to put it simply, are inhuman, brutal and barbarous. For example, in most of the DNTs, the accused woman has to pick up a coin from a pot of boiling oil to prove her innocence. Other penalties include branding the tip of the tongue with a hot iron, forcing to carry human or animal excreta, forcing to walk through fire, shaving of head, social boycott and ostracism [Mane 1997:211-28]. Of course, these are not uniform across all the communities and there are exceptions. However, the attitude towards women is clearly repressive. Gender issues need to be addressed on a priority basis if a process of social development is to be initiated among the DNTs.

Another dimension of gender issues is the exploitation and repression of DNT women by the police. The regional newspapers are full of stories of police atrocities against these women, especially from the Pardhi community. Women are easy targets for the police as their men-folk are often either absconding or are locked in police custody. In Maharashtra, cases against police personnel for atrocities on DNT women have been registered from time to time but the percentage of conviction is minuscule. Gender sensitisation of a police is the key issue in imparting justice to DNT women.

Political Movements

In recent times, in a state like Maharashtra, a good deal of awakening and awareness raising has been occurring among DNTs. This has been the result of the progressive leftist and dalit movements in the state, which has consistently highlighted the plight of the DNTs since the 1970s. Consequently, a cadre of DNT activists from among various communities has emerged.

One of the means of raising awareness has been literature, modelled on the lines of dalit literature. Dalit literature in Maharashtra not only gave a vent to suppressed sorrows and miseries of dalits, but also opened up a new vista of dalit activism. It also enlightened and educated several in the mainstream society. The literary expressions of DNT activists and writers have appeared in the same vein since the publication of *Upara* by Laxman Mane (1984). Since then a number of autobiographies have appeared in print. Some of them like *Gabal* (More, 1983), *Uchalya* (Gaikwad, 1987), *Berad* (Gasti, 1987) and *Kolhatyache Por* (Kale, 1994) depicting the life of stone-dressers, pick-pockets, village-watchmen and danseuses respectively have been outstanding. *Uchalya* has also won the Sahitya Academy Award.

Though literature has played its role in sensitising society, journalistic and autobiographical expressions have a limited utility in changing their actual conditions of existence. Engagement in serious social research, especially in regional languages, is therefore necessary.

Political and social mobilisation of the DNTs has been carried out through their respective caste associations. Almost all the communities have formed their own associations and they hold meetings and conventions regularly. The situation is reminiscent of 1930s and 1940s when caste associations proliferated. Though this political dynamism is laudable, the segregation of DNTs in caste associations has been detrimental to their unity and common identity as DNTs. The first batch of leaders and activists have also fallen apart due to ego problems and vested self-interests. The political elite in Maharashtra quickly coopted the emerging DNT leadership and turned them into proteges as they had done with dalit leaders earlier. Many of the upcoming leaders have also not been able to maintain high standards of public life and integrity. As a result, despite widespread politicisation, the DNTs have not emerged as a successful pressure group. It is high time that the leaders should

bridge their differences and put forth a united front to realise political demands.

Social Reforms

Though the DNTs are politically well conscientised, the same cannot be said about social reforms. These small, endogamous and inward looking communities are deeply embedded in their blind faith, superstitions, evil practices and repressive customs. Many of them still have their own 'jat panchayat' (caste council) where the writ of elders rules large. It is well known that in tribal communities, age and sex were the two criteria on which traditional authority rested. The elders ruled over women and the young ones. Though the caste councils have played a useful role in the past in holding the community together, they have become redundant in today's legal and juridical framework, which uphold individual human rights. The traditional beliefs, customs, rules and practices are not necessarily compatible with the modern ideas of justice, freedom, equality and fundamental rights. As mentioned earlier, women are the worst victims of tradition and so are the young activists.

Social reforms within the communities are therefore urgently needed. Illiteracy, ignorance, age-old beliefs, hardened prejudices, perpetuation of poverty, insecure existence and shortage of motivated leaders are some of the obstacles to social reforms. The ray of hope lies in the spread of education, exposure to outside world, increased social interaction and overall modernisation of society. The onus lies on the young, educated youth from the communities, as outsiders do not have much scope in this regard.

Towards Integration

The ultimate issue is social integration. This issue is very peculiar with the DNTs. Other disadvantaged groups like the scheduled castes and scheduled tribes also suffered a great deal of injustices but they were not excluded from the village society. The scheduled tribes, wherever they were numerically significant, formed their own societies. The DNTs had links with the village society but were never made a part of it. Their transitory existence, parasitic lifestyle, peculiar behaviour and culture, and involvement in socially unacceptable activities posed problems to their integration.

However, if these communities were to live honourably, they need to be integrated into the mainstream society. The first step in this direction is physical inclusion. The

members of DNTs need housing support at locations preferred by them. Some of their organisations in Maharashtra have demanded a house plot of 1000 sq ft per family for settlement. This demand appears reasonable. Once, house sites with due amenities are provided, then subsequent measures could follow. This step is often called rehabilitation but the term is a misnomer, as many of the DNTs were not rehabilitated in the first place.

The real task is of course social integration, which warrants changes in the attitudes of mainstream society, assimilation in local communities and opportunities to participate in local self-government. Needless to mention this is a tough task. At present, efforts are limited to a handful of activists and agencies. But the idea needs to spread widely so that all those small and scattered bands of DNTs are included.

In practice, the issue of integration has selective application. The ex-criminal communities face an uphill task in this regard whereas entertainers and religious nomads have been reasonably well integrated. There is also a spatial dimension. Integration in the urban areas is relatively easier than in the rural ones. The rural society is not yet favourably disposed to accepting the members of the de-notified tribes. There is also some resistance in small towns. Only in metropolitan cities, the DNTs can peacefully diffuse into the populace. But there they have to work individually. In urban areas their community characteristics are lost. Some NGOs have tried to establish separate colonies of the DNTs but that step is not conducive to social assimilation. A broader societal consensus needs to emerge towards integration of the DNTs so that concerted efforts are made from all quarters.

Programmatic Agenda

The task of formulating a perspective would not be complete unless a practical agenda is suggested for integration and development of the DNTs. Although a plethora of programmes could be suggested, the basic steps warranted are as follows:

- (1) Provision of constitutional safeguards to some of the most vulnerable communities like the Pardhis, and covering them under the Prevention of Atrocities Act (1989).
- (2) Strict scrutiny of the caste certificates of DNTs and penalisation of bogus DNTs.
- (3) Sensitisation of the police force by information dissemination and in-service training, and setting up of special cells (in collaboration with NGOs) for legal aid and

counselling, especially for women.

(4) Facilitation of low income housing projects in small towns and cities by granting land plots to DNT families.

(5) Free and compulsory education to genuine DNT children till at least matriculation.

Conclusion

The DNTs are one of the most subjugated sections of Indian society who have been the victims of historical dislocations, unconventional occupations, colonial legacy and social stigma. There may not be any other case in social history where cultural singularity of a set of communities has proven to be a bane to their existence. The emergence of modern, secular institutions including democracy and judiciary has not been beneficial to these people either. This is a classic case of mismatch between tradition and modernity, which has proven very costly in terms of social justice and equality. The modern process of development has also failed to include them in its orbit. As a result the DNTs continue to remain poor, marginalised and powerless communities. Unfortunately, their case has not been sufficiently

attended to by democratic polity and civil society. Their closed, inward looking cultures have also found to be an obstacle to change and development. For these very reasons, there is a need to make concerted efforts towards their development. The preparation of this perspective is a step in this direction, which needs to be followed with research, action and advocacy. **EPW**

Note

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- 1 The terms 'de-notified' and 'nomadic' do not belong to the same typology as the former term is political and the latter ecological. The communities which were notified as criminal during the British rule and which were de-notified after independence are called de-notified tribes. However, as some of the de-notified communities were nomadic and vice versa, they are usually considered together.

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